

Akash Sharma v. State of U.P.

Allahabad High Court · Division Bench · 18 May 2022 · Writ-C No. 31178 of 2021 · **Writ disposed; 6.5 objection; coercive action stayed 8 weeks**

HEADNOTE

A consumer's writ against a disconnection-cum-permanent-disconnection order on a disputed demand was disposed of without a merits finding. Liberty was given to file an objection under paragraph 6.5 of the U.P. Electricity Supply Code, 2005 within four weeks, to be decided within the following four weeks after hearing. Coercive action on the demand was stayed for eight weeks or until disposal of the objection, whichever was earlier.

FACTUAL SUMMARY

The petitioner, a consumer with a 5 kW connection (Book/Connection No. 1107/2029331836), challenged an order dated 19 August 2021 of the distribution licensee directing temporary disconnection by removing the meter and completing permanent disconnection. He sought certiorari to quash that order and mandamus to continue supply. Counsel for the Power Distribution Corporation stated on instructions that the petitioner could file an objection against the impugned demand, which would be decided in accordance with law within a time-bound period.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

disputed-demand-remittal-to-clause-6.5

HOLDING

Without expressing any opinion on merits, a writ challenging a demand and disconnection order is disposed of with liberty to file an objection under paragraph 6.5 of the U.P. Electricity Supply Code, 2005 before the designated officer within four weeks; if so filed, the objection is to be decided in accordance with law within the next four weeks after hearing, and no coercive action on the demand is to be taken for eight weeks or until disposal of the objection, whichever is earlier. ¶ 1

PRINCIPLE TAGS

clause-6.5-alternate-remedy-to-writ The Division Bench declined merits review of the disconnection demand and remitted the consumer to a paragraph 6.5 objection as the statutory forum, with a short stay of coercive action pending that objection. ¶ 1

clause-6.5-statutory-remedy-disputed-bill On the licensee's statement that an objection to the impugned demand would be decided time-bound, the Court treated paragraph 6.5 as the proper statutory remedy for the disputed bill and disconnection. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE IMPUGNED DEMAND AND DISCONNECTION ORDER DATED 19.8.2021

The Court expressly declined to express any opinion on the merits of the petitioner's case. ¶ 1